

24NNCV04603 24NNCV04603

County: los-angeles

Division: Civil Law and Motion

Department: B

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Case Number: 24NNCV04603 Hearing Date: June 26, 2026 Dept: B

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

PERLA

MAGENO,

Plaintiff,

vs.

LAURENT CAFE LLC, et al.

Defendants.

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CASE NO.: 24NNCV04603

[TENTATIVE RULING]

DEMURRER TO SECOND AMENDED COMPLAINT IS OVERRULED

Dept. B

8:30 a.m.

June 26, 2026

Background

On

November 21, 2025, Plaintiff filed the Second Amended Complaint against Defendant Laurent Café LLC. Plaintiff alleges she is legally blind and relies on screen reading software to access websites. Plaintiff asserts that she visited Defendant's website, cafelaurent.com, on multiple occasions to review the restaurant's menu, obtain the restaurant's address, and place an online order. Plaintiff alleges that during her August 2024 and December 2024 visits to the website, she encountered multiple accessibility barriers preventing her from ordering food online or independently reviewing menu content.

Plaintiff

asserts that because the website was not usable with screen reading software, she was deterred from visiting the restaurant in August 2024. Plaintiff later visited the restaurant in December 2024 with sight assistance and claims she was forced to rely on sighted assistance at the restaurant because the website had prevented her from reviewing the menu in advance. Based on these allegations, Plaintiff alleges a violation of the Americans with Disabilities Act (42 U.S.C. § 12101 et seq.), and based on that violation, a violation of the Unruh Act (Cal Civil Code § 51 et seq.)

Legal Standard

A

demurrer for sufficiency tests whether the complaint states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) When considering demurrers, courts read the allegations liberally and in context. (Wilson v. Transit Authority of City of Sacramento (1962) 199 Cal.App.2d 716, 720-21.) In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not on the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Id.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn, supra, 147 Cal.App.4th at 747.) Before filing a demurrer, demurring party is also required to meet and confer with the party who filed the pleading demurred to for the purposes of determining whether an agreement can be reached through a filing of an amended pleading that would resolve the objections to be raised in the demurrer. (See Code Civ. Proc., § 430.41.)

Unruh Civil Rights Act

“All

persons within the jurisdiction of this state are free and equal, and no matter what their sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, sexual orientation, citizenship, primary language, or immigration status are entitled to the full and equal accommodations, advantages, facilities, privileges, or services in all business establishments of every kind whatsoever.” Civ. Code, §

51(b). "No business establishment of any kind whatsoever shall discriminate against . . . any person in this state on account of any characteristic listed or defined in subdivision (b) or (e) of Section 51 . . . because the person is perceived to have one or more of those characteristics, or because the person is associated with a person who has, or is perceived to have, any of those characteristics." *Id.*, § 51.5(a).

ADA

The Unruh Civil Rights Act ("Unruh Act")

prohibits discrimination on the basis of sex, race, color, religion, ancestry, national origin, disability, medical condition, genetic information, marital status, or sexual orientation. (See Civ. Code § 51.) Civil Code Section 51 provides that any violation of the Americans with Disabilities Act of 1990 ("ADA") constitutes a violation of the Unruh Act. (See *id.*, § 51(f); *Jankey v. Song Koo Lee* (2012) 55 Cal.4th 1038, 1044 (finding violations of the ADA are per se violations of the Unruh Act).) A plaintiff seeking damages for violation of the Unruh Act based on a violation of the ADA pursuant to section 51(f) need not prove intentional discrimination. (See *Munson v. Del Taco, Inc.* (2009) 46 Cal.4th 661, 664-65.)

The ADA prohibits discrimination on the

basis of disability in the full and equal enjoyment of services, facilities, and accommodations of a place of public accommodation by any person who owns, leases, or operates a place of public accommodation. (See 42 U.S.C. § 12182(a).) Discrimination under the ADA includes "a failure to remove architectural barriers, and communication barriers that are structural in nature, in existing facilities . . . where such removal is readily achievable . . . " and a failure to provide auxiliary aids and services, unless it would result in an undue burden. (42 U.S.C. § 12182(b)(2)(A)(iii), (iv).)

Furthermore, whether a facility provides full and equal access is defined in part by the ADA Accessibility Guidelines. (See 28 C.F.R. pt. 36, app. A; *Chapman v. Pier 1 Imports (U.S.) Inc.* (9th Cir. 2015) 779 F.3d 1001, 1006.)

"[T]o prevail on a discrimination claim

under Title III, a plaintiff must show that: (1) he is disabled within the meaning of the ADA; (2) the defendant is a private entity that owns, leases, or operates a place of public accommodation; and (3) the plaintiff was denied public accommodations by the defendant because of his disability." (*Arizona*

ex rel. *Goddard v. Harkins Amusement Enterprises, Inc.* (9th Cir. 2010) 603 F.3d 666, 670.)

Discussion

Defendant's

demurrer challenges the Second Amended Complaint on two grounds: failure to state facts sufficient to constitute a cause of action and uncertainty.

Defendant

argues that the SAC fails to allege facts establishing a causal connection between any identified website barrier and Plaintiff's alleged inability to locate the restaurant, review the menu, or place an order. The Court previously held the complaint must "clearly link the specific barriers described in subsections (a) through (d) to the claimed inability to locate the restaurant, review the menu, or place an order." An ADA violation can arise from website inaccessibility when there is a nexus between the website and the goods or services of a physical place of public accommodation. (*Id.* at 905–06.)

In

Robles, the plaintiff, who was visually impaired, alleged that Domino's website prevented him from ordering pizza for delivery. The Ninth Circuit held that the ADA applied to the website because it "facilitate[s] access to the goods and services of a place of public accommodation" and "connect[s] customers to the goods and services of Domino's physical restaurants." (*Robles v. Domino's Pizza, LLC* (9th Cir. 2019) 913 F.3d 898, 905-06.)

Courts

have applied the same reasoning in other website accessibility cases. (See *Farr v. Hobby Lobby Stores, Inc.* (C.D. Cal. Apr. 29, 2020) 2020 WL 3978078, at *2 [so long as there is a nexus between a physical location and the website, web-based barriers can create ADA injury].) A sufficient nexus exists, for example, when a website prevents a plaintiff from ordering products for pickup or delivery, as in *Robles*, or when web-based barriers prevent locating a physical store, as in *Farr*. (See also *Williams v. Amazon.com Inc.* (E.D. Cal. Oct. 6, 2020) 2020 WL 5909060, at *1 [plaintiff adequately alleged deterrence where inaccessible website prevented locating store information]; *Haggar v. Ashley Furniture Indus., Inc.* (C.D. Cal. Dec. 12, 2019) 2019 WL 8886026, at *3 [plaintiffs alleged inability to use website to locate stores and order products available at physical

locations].)

Previously,

the Court was persuaded by Defendant's argument regarding the lack of a clear link between the specific website barriers alleged and Plaintiff's claimed inability to access goods and services at a physical location. (See *Whitaker v. Tesla Motors, Inc.* (9th Cir. 2021) 985 F.3d 1173, 1176; see also *Whitaker v. Trinitas Cellars, LLC* (N.D. Cal. June 17, 2022) 2022 U.S. Dist. LEXIS 108468, at *10–11.)

Plaintiff

again alleges that:

a.

The home page has graphics, links, and buttons that are not labeled or are incorrectly labeled, or lack alternative text ("Alt-text"). Alt-text is invisible code embedded beneath a graphical image on a website. Web accessibility requires that Alt-text be coded with each picture so that screen-reading software can speak the Alt-text where a sighted user sees pictures. Alt-text does not change the visual presentation, but instead a text box shows when the cursor moves over the picture. The lack of Alt-text on these graphics prevents screen-readers from accurately vocalizing a description of the graphics;

b.

Plaintiff encountered multiple unlabeled or mislabeled buttons and links. Without descriptive alternate text, Plaintiffs, and other screen-reader users, have no way to discern the purpose or function of the button or link;

c.

Plaintiff encountered multiple pages containing insufficient navigational headings requiring Plaintiff to expend substantial additional time to access information;

d.

Plaintiff encountered an inaccessible slideshow when attempting to access the Website requiring Plaintiff to expend substantial additional time to access information.

Plaintiff

later alleges that she was unable to access location information, view the menu, and place an order because this information was inaccessible to screen reader software. Additionally, Plaintiff has added paragraph 53, which states,

“Due

to the unlabeled buttons, lack of Alt-text, the structure of the headings and Website, cursor traps, and other barriers, Plaintiff was unable to fully and independently access the Website when visiting for the dual purpose of confirming compliance with the UCRA and ADA and to browse the menu before visiting the Venice Boulevard location.”

(Second

Amended Complaint, ¶ 53.)

The

Second Amended Complaint now clearly links the specific barriers described in subsections (a) through (d) to the claimed inability to locate the restaurant, review the menu, or place an order. Additionally, the Court finds that the SAC is not uncertain.

The demurrer is OVERRULED.

Parties who

intend to submit on this tentative must send an email to the Court at indicating intention to submit on the tentative as directed by the instructions provided on the court's website at www.lacourt.org.

Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court may, at its discretion, adopt the tentative as the final order or place the motion off calendar.

Hon. Lee S. Arian

Judge of the Superior Court